

	30-2026-01551910-CU-CL-CJC	Defendant has established Plaintiff resides outside the state of California, and there is a reasonable possibility Defendant will obtain judgment in the action. (Code Civ. Proc., § 1030, subds. (a), (b); Stein Decl., ¶ 3, Ex. A; Perry Decl., ¶¶ 4-19.) Defendant's request for an undertaking of \$125,000 is excessive. (Stein Decl., ¶ 6.) The court grants a reduced undertaking of \$50,000. Plaintiff is ORDERED to file an undertaking in the sum of \$50,000 within 30 days. (Civ. Proc. Code, § 1030, subd. (d).) If Plaintiff fails to file the undertaking within the time allowed, upon request by Defendant, the court will dismiss the action. Defendant to give notice.
6	Villasenor vs. American Honda Motor Co., Inc. 30-2024-01430801-CU-BC-CJC	Motion to Reopen Discovery to Compel and Complete Deposition of Plaintiff's Designated Experts or Exclude their Testimony and Impose Sanctions Defendant American Honda Motor Co., Inc.'s (AHM) Motion to Reopen Discovery to Compel and Complete Deposition of Plaintiff's Experts, or alternatively, to Exclude Their Testimony and for Sanctions is DENIED as MOOT. Plaintiff offered a date for deposition for Sims and de-designated the remaining experts only after AHM filed its motion. Plaintiff does not explain why it did not respond to AHM's counsel's attempts to follow up after Plaintiff served its objections or otherwise attempted to meet and confer in good faith regarding Plaintiff's expert witnesses' availability prior to this motion being filed. Accordingly, AHM's request for sanctions in the amount of \$2,524.00 is GRANTED. (Code Civ. Proc., §§ 2023.030, 2023.010.) Plaintiff is ORDERED to pay the sanctions within 20 days. Clerk to give notice.
7	Sultzer vs. Ford Motor Company 30-2025-01464483-CU-BC-CJC	Motion for Judgment on the Pleadings The Motion for Judgment on the Pleadings by Defendant Ford Motor Co. and Tuttle Click Ford is DENIED as to the first through fourth causes of action and GRANTED as to the fifth and sixth causes of action. Plaintiff's First Amended Complaint (FAC) alleges claims for breach of Civil Code section 1793.2 (first-third),

		breach of implied warranty of merchantability (fourth), negligent repair (fifth), and fraudulent inducement concealment (sixth). Defendants contend Plaintiff's first through fourth claims are barred by the statute of repose set out in Code of Civil Procedure section 871.21, subdivision (b). They argue the fifth claim is barred by the economic loss rule. They contend Plaintiff's sixth claim is (1) barred by the three-year statute of limitations, (2) barred by the economic loss rule, and (3) fails to plead sufficient facts demonstrating fraud. Section 871.21 sets out a six-year statute of repose for Song-Beverly Act claims, which Defendants contend is not subject to equitable tolling and can only be tolled as set out in the statute. (Motion, p. 10.) Plaintiff argues section 871.21, which became effective on 7/1/2025, did not retroactively bar this claim filed on 3/4/2025. Defendant responds that the statute's effective date was 1/1/2025 and the Legislature intended to create a statute of repose which extinguished claims more than six years old filed after 1/1/2025 unless the statutory grounds for tolling applied. Neither party cites case law addressing this question of recently-enacted law. In the absence of case law addressing whether equitable tolling applies to claims under section 871.21, Plaintiff has adequately pled equitable tolling of the Song-Beverly Act claims at this stage. (FAC, ¶¶ 43-44.) Regarding the negligent repair claim, Defendants contend it is barred by the economic loss rule, which precludes tort recovery for damages consisting solely of economic loss. Defendant contends this claim arises solely from the warranty contract and Plaintiff's remedy is limited to contract and warranty claims. Again, neither party cites case law addressing this issue in the context of Song-Beverly Act claims. However, Plaintiff does not address these arguments in opposition. Therefore, the motion is granted as to this cause of action. Finally, as to the fraudulent inducement claim, Defendant contends this claim fails because Plaintiff has failed to allege a transactional relationship under <i>Dhital v. Nissan N. Am., Inc.</i>, (2022) 84 Cal.App.5th 828. Plaintiff responds no transactional relationship is required because Ford directly markets its vehicles to consumers. Plaintiff fails to allege he purchased the vehicle directly from Ford's authorized agents and has not shown Ford and Plaintiff were in a direct transactional relationship. Under
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		<i>Dhital</i> Plaintiff has failed to show a transactional relationship giving rise to a duty to disclose. Plaintiff is given 10 days leave to amend. If Plaintiff files and amended pleading, Plaintiff is ORDERED to file a red-line and clean copy. Clerk to give notice.
8	Chandra vs. K1 Speed, Inc. 30-2024-01381781-CU-PO-CJC	Motion to Strike, or Alternatively, Tax K1 Speed-Irvine LLC's Memorandum of Costs Plaintiffs Surina Prilla Chandra and Luke Hilty's Motion to Strike Costs is GRANTED. K1 Speed-Irvine, LLC (K1 Irvine) prevailed on its motion for summary judgment, however, its codefendant, K1 Speed, Inc., remains a defendant. K1 Irvine has not demonstrated costs currently claimed were incurred only by it. (See <i>Fennessy v. DeLeuw-Cather Corp.</i> (1990) 218 Cal.App.3d 1192, 1196.) Plaintiffs to give notice.
9	Pham vs. Alarian 30-2024-01425258-CU-FR-CJC	Motion for Terminating Sanctions Striking Defendants' Answers and Entering Default Plaintiff's unopposed motion for terminating sanctions striking defendants Omar T. Alarian aka Omar Alarian, Karim Rashdan aka Mohamed Kareen Rashdan Abbelaziz Mohamed Rashdan, Alarian Gear, LLC, and Raw Alarian, LLC's answers to plaintiff's complaint and entering their default for failure to comply with order entered 5/4/2026 regarding defendants' responses to plaintiff's discovery and for further monetary sanctions in the amount of \$2460 is GRANTED in part. The court ORDERS the answer of defendant Omar T. Alarian aka Omar Alarian (ROA 33) STRICKEN and enters DEFAULT of this defendant. The court ORDERS the answer of defendant Mohamed Kareem Rashdan Mohamed aka Karim Rashdan (ROA 30) STRICKEN and enters DEFAULT of this defendant. The court DENIES the request for further monetary sanctions. Defendants Alarian Gear, LLC and Raw Alarian, LLC were defaulted on 4/30/2026. All defendants are now in default.